

HIGH COURT AND SUBORDINATE COURTS

ONE HIERARCHY, CONSTITUTIONALLY SIGNIFICANT → HIGH COURT APPOINTMENTS, QUALIFICATION → TRANSFER, ACTING/ADDITIONAL JUDGES AND → ORIGINAL, APPELLATE, WRIT AND → ARTICLE 226 VERSUS 32 → DISTRICT JUDGES AND SUBORDINATE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW
SUBORDINATE EXTRA
APPROVAL / REVIEW

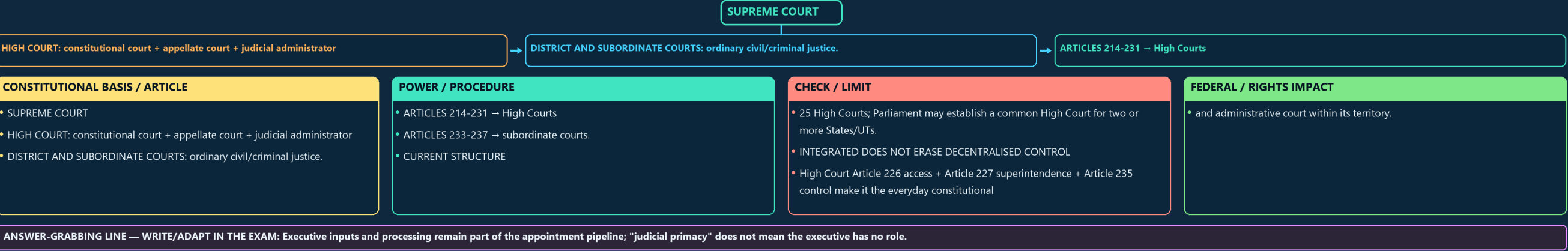
Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00
ONE HIERARCHY, CONSTITUTIONALLY SIGNIFICANT HIGH COURTS

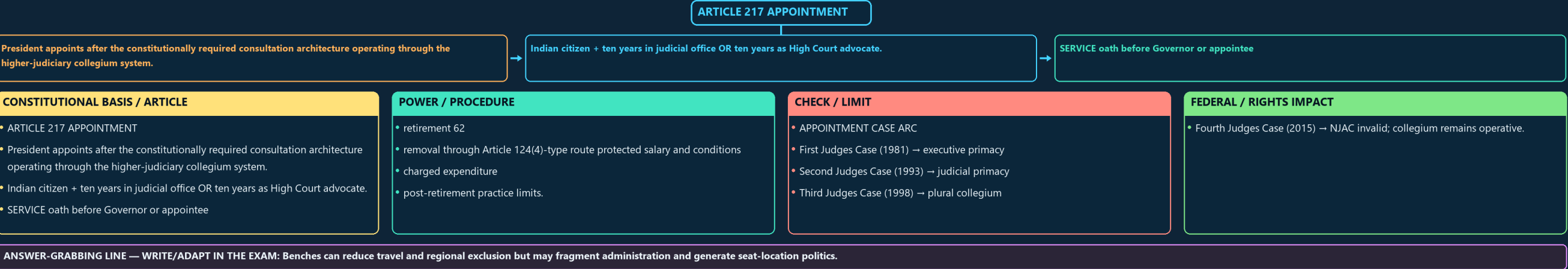
ONE HIERARCHY, CONSTITUTIONALLY SIGNIFICANT HIGH COURTS
SUPREME COURT
HIGH COURT
CONSTITUTIONAL COURT + APPELLATE COURT + JUDICIAL ADMINISTRATOR
DISTRICT AND SUBORDINATE COURTS
ORDINARY CIVIL/CRIMINAL JUSTICE.
ARTICLES 214-231
HIGH COURTS



01

STAGE 01
HIGH COURT APPOINTMENTS, QUALIFICATION AND INDEPENDENCE

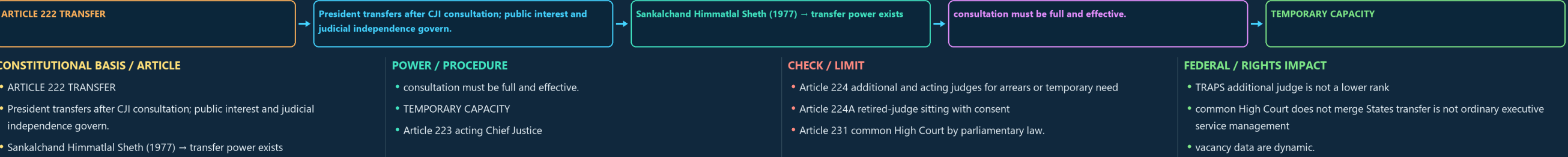
HIGH COURT APPOINTMENTS, QUALIFICATION AND INDEPENDENCE
ARTICLE 217 APPOINTMENT
PRESIDENT APPOINTS AFTER THE CONSTITUTIONALLY REQUIRED CONSULTATION ARCHITECTURE OPERATING
INDIAN CITIZEN + TEN YEARS IN JUDICIAL OFFICE OR
SERVICE OATH BEFORE GOVERNOR OR APPOINTEE
RETIREMENT 62
REMOVAL THROUGH ARTICLE 124(4)-TYPE ROUTE PROTECTED SALARY AND CONDITIONS
CHARGED EXPENDITURE



02

STAGE 02
TRANSFER, ACTING/ADDITIONAL JUDGES AND COMMON HIGH COURTS

TRANSFER, ACTING/ADDITIONAL JUDGES AND COMMON HIGH COURTS
ARTICLE 222 TRANSFER
PRESIDENT TRANSFERS AFTER CJI CONSULTATION; PUBLIC INTEREST AND JUDICIAL
SANKALCHAND HIMMATLAL SHETH (1977)
TRANSFER POWER EXISTS
CONSULTATION MUST BE FULL AND EFFECTIVE.
TEMPORARY CAPACITY
ARTICLE 223 ACTING CHIEF JUSTICE



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A retired judge under Article 224A is not thereby treated as a permanent serving judge for all purposes.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 32 ARTICLE 226	ARTICLE 227 superintendence over courts and tribunals within territory, subject to constitutional exclusions.	High Court control over district and subordinate judiciary protects decisional independence.	ARTICLE 227 superintendence over courts and tribunals within territory, subject to constitutional exclusions.
Supreme Court High Court itself a Fundamental Right constitutional power, not a Part III right	ARTICLE 228 withdraw case involving a substantial constitutional question and decide or return it.	L. Chandra Kumar (1997) → Articles 226/227 and 32 review are Basic Structure	
Fundamental Rights Fundamental Rights + other legal rights national apex route territorial cause-of-action route	ARTICLE 235	tribunals supplement but cannot wholly replace constitutional courts.	
CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 32 ARTICLE 226 - Supreme Court High Court itself a Fundamental Right constitutional power, not a Part III right - Fundamental Rights Fundamental Rights + other legal rights national apex route territorial cause-of-action route	POWER / PROCEDURE - ARTICLE 227 superintendence over courts and tribunals within territory, subject to constitutional exclusions. - ARTICLE 228 withdraw case involving a substantial constitutional question and decide or return it. - ARTICLE 235	CHECK / LIMIT - High Court control over district and subordinate judiciary protects decisional independence. L. Chandra Kumar (1997) → Articles 226/227 and 32 review are Basic Structure - tribunals supplement but cannot wholly replace constitutional courts.	FEDERAL / RIGHTS IMPACT ARTICLE 227 superintendence over courts and tribunals within territory, subject to constitutional exclusions.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 227 enables judicial and administrative superintendence over subordinate forums, but its corrective role cannot be converted into routine factual reappraisal.			

05

STAGE 05 DISTRICT JUDGES AND SUBORDINATE JUDICIAL INDEPENDENCE			
DISTRICT JUDGES AND SUBORDINATE JUDICIAL INDEPENDENCE	ARTICLE 233 DISTRICT JUDGES	GOVERNOR APPOINTS IN CONSULTATION WITH HIGH COURT	DIRECT BAR RECRUIT REQUIRES AT LEAST SEVEN YEARS AS
GOVERNOR MAKES APPOINTMENTS UNDER RULES AFTER CONSULTATION WITH STATE		ARTICLE 235 CONTROL POSTING, PROMOTION, LEAVE AND DISCIPLINE UNDER	ARTICLE 50
ARTICLE 233 DISTRICT JUDGES	→ Governor appoints in consultation with High Court	→ direct Bar recruit requires at least seven years as advocate/pleader and High Court recommendation.	→ ARTICLE 234 OTHER JUDICIAL SERVICE
→ Governor makes appointments under rules after consultation with State PSC and High Court.			
CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 233 DISTRICT JUDGES - Governor appoints in consultation with High Court - direct Bar recruit requires at least seven years as advocate/pleader and High Court recommendation.	POWER / PROCEDURE - ARTICLE 234 OTHER JUDICIAL SERVICE - Governor makes appointments under rules after consultation with State PSC and High Court. - ARTICLE 235 CONTROL posting, promotion, leave and discipline under High Court control, subject to legal safeguards.	CHECK / LIMIT - ARTICLE 50 - State shall separate judiciary from executive in public services. - Chandra Mohan (1966) → executive dominance over district-judge selection violates the constitutional scheme of an independent judicial service.	FEDERAL / RIGHTS IMPACT ARTICLE 234 OTHER JUDICIAL SERVICE
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Governor does not appoint unilaterally, and the High Court does not formally appoint alone.			

06

STAGE 06 GRAM NYAYALAYAS, TRIBUNALS AND THE AIJS DEBATE			
GRAM NYAYALAYAS, TRIBUNALS AND THE AIJS DEBATE	GRAM NYAYALAYAS ACT, 2008 BOUNDED STATUTORY LOCAL-COURT MODEL FOR	TRIBUNALS SPECIALISATION + SPEED POTENTIAL	VERSUS APPOINTMENTS, TENURE, EXECUTIVE CONTROL AND FRAGMENTED APPEALS.
L. CHANDRA KUMAR (1997) KEEPS HIGH COURT JUDICIAL REVIEW	ALL INDIA JUDICIAL SERVICE	ARTICLE 312 ROUTE	RAJYA SABHA TWO-THIRDS OF MEMBERS PRESENT AND VOTING
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
GRAM NYAYALAYAS ACT, 2008 bounded statutory local-court model for notified areas; establishment and functioning are uneven.	L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor.	parliamentary law; Article 312(3) excludes posts below district judge.	L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor.
TRIBUNALS specialisation + speed potential	ALL INDIA JUDICIAL SERVICE	DEBATE national standards and vacancies versus language, local law, federal control and career integration.	
VERSUS appointments, tenure, executive control and fragmented appeals.	Article 312 route → Rajya Sabha two-thirds of members present and voting	CURRENT STATUS: no AIJS has been created.	
CONSTITUTIONAL BASIS / ARTICLE - GRAM NYAYALAYAS ACT, 2008 bounded statutory local-court model for notified areas; establishment and functioning are uneven. - TRIBUNALS specialisation + speed potential - VERSUS appointments, tenure, executive control and fragmented appeals.	POWER / PROCEDURE L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor. - ALL INDIA JUDICIAL SERVICE - Article 312 route → Rajya Sabha two-thirds of members present and voting	CHECK / LIMIT - parliamentary law; Article 312(3) excludes posts below district judge. - DEBATE national standards and vacancies versus language, local law, federal control and career integration. - CURRENT STATUS: no AIJS has been created.	FEDERAL / RIGHTS IMPACT L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.			

07

STAGE 07 VACANCIES, PENDENCY, LEGAL AID AND ECOURTS			
VACANCIES, PENDENCY, LEGAL AID AND ECOURTS	DELIVERY BOTTLENECK VACANCIES + INFRASTRUCTURE + PROCESS DELAY +	UNEQUAL BARGAINING	REDUCED TRUST. ACCESS LAYER
ARTICLE 39A LEGAL AID		LOK ADALATS	E-SEWA KENDRAS.
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT

GRAM NYAYALAYAS ACT, 2008 bounded statutory local-court model for notified areas; establishment and functioning are uneven.	L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor.	parliamentary law; Article 312(3) excludes posts below district judge.	L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor.
TRIBUNALS specialisation + speed potential	ALL INDIA JUDICIAL SERVICE	DEBATE national standards and vacancies versus language, local law, federal control and career integration.	
VERSUS appointments, tenure, executive control and fragmented appeals.	Article 312 route → Rajya Sabha two-thirds of members present and voting	CURRENT STATUS: no AIJS has been created.	
CONSTITUTIONAL BASIS / ARTICLE - GRAM NYAYALAYAS ACT, 2008 bounded statutory local-court model for notified areas; establishment and functioning are uneven. - TRIBUNALS specialisation + speed potential - VERSUS appointments, tenure, executive control and fragmented appeals.	POWER / PROCEDURE L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor. - ALL INDIA JUDICIAL SERVICE - Article 312 route → Rajya Sabha two-thirds of members present and voting	CHECK / LIMIT - parliamentary law; Article 312(3) excludes posts below district judge. - DEBATE national standards and vacancies versus language, local law, federal control and career integration. - CURRENT STATUS: no AIJS has been created.	FEDERAL / RIGHTS IMPACT L. Chandra Kumar (1997) keeps High Court judicial review as the constitutional floor.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.			

07

STAGE 07 VACANCIES, PENDENCY, LEGAL AID AND ECOURTS			
VACANCIES, PENDENCY, LEGAL AID AND ECOURTS	DELIVERY BOTTLENECK VACANCIES + INFRASTRUCTURE + PROCESS DELAY +	UNEQUAL BARGAINING	REDUCED TRUST. ACCESS LAYER ARTICLE 39A LEGAL AID LOK ADALATS E-SEWA KENDRAS.
CONSTITUTIONAL BASIS / ARTICLE - DELIVERY BOTTLENECK vacancies + infrastructure + process delay + adjournments + government litigation - pendency → cost → unequal bargaining → reduced trust. - ACCESS LAYER	POWER / PROCEDURE - Article 39A legal aid - Lok Adalats - e-Sewa Kendras.	CHECK / LIMIT - Speedy-trial access principles belong to the wider rights chain - do not equate disposal with justice. - eCOURTS PHASE III, 2023-2027 digitisation + e-filing + e-payments + paperless courts + data-based management.	FEDERAL / RIGHTS IMPACT - LIMIT technology can reduce transaction costs but cannot replace judges, translators, connectivity, accessible design, reasoned hearings or enforcement - Quote dynamic numbers only with a date.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Judicial pendency arises from interacting demand, vacancy, procedure, infrastructure and government-litigation failures, so no single institutional reform can eliminate the backlog.			

08

STAGE 08 SC-HC-SUBORDINATE COMPARISON, TRAPS AND ANSWER SPINE			
SC-HC-SUBORDINATE COMPARISON, TRAPS AND ANSWER SPINE	SUPREME COURT HIGH COURT SUBORDINATE COURTS NATIONAL APEX TERRITORIAL	ARTICLE 32 ARTICLE 226 WIDER IN CAUSE STATUTORY JURISDICTION	ARTICLE 141 PRECEDENT ARTICLE 227 SUPERINTENDENCE BOUND BY HIGHER PRELIMS FIREWALL
HC RETIREMENT 62, SC 65	ARTICLE 226 WIDER THAN 32	COMMON HC BY PARLIAMENT DISTRICT JUDGES	
SUPREME COURT HIGH COURT SUBORDINATE COURTS national apex territorial constitutional court ordinary trial hierarchy	Article 32 Article 226 wider in cause statutory jurisdiction	Article 141 precedent Article 227 superintendence bound by higher courts final appeals/SLP appeals + administration	PRELIMS FIREWALL
HC retirement 62, SC 65			
CONSTITUTIONAL BASIS / ARTICLE - SUPREME COURT HIGH COURT SUBORDINATE COURTS national apex territorial constitutional court ordinary trial hierarchy - Article 32 Article 226 wider in cause statutory jurisdiction - Article 141 precedent Article 227 superintendence bound by higher courts final appeals/SLP appeals + administration facts, trial and first appeal	POWER / PROCEDURE - PRELIMS FIREWALL - HC retirement 62, SC 65 - Article 226 wider than 32	CHECK / LIMIT - common HC by Parliament district judges: Governor + HC consultation - Article 235 control with HC - AIJS absent.	FEDERAL / RIGHTS IMPACT - MAINS SPINE locate Article → state institutional function → appointment/control safeguard - access or capacity problem → case with year → cooperative reform - independent, decentralised and digitally inclusive justice conclusion.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Transfer can address administration and local entrenchment but can also be perceived as punitive.			

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

37. ARTICLE 226 VERSUS ARTICLE 227 IN ANSWER WRITING

38. HIGH COURT VERSUS SUPREME COURT

39. APPOINTMENT REFORM MATRIX

40. ANSWER-WRITING EVIDENCE DISCIPLINE

HIGH COURT CONTROL PROTECTS DISTRICT JUDICIAL INDEPENDENCE.

NAMED EVIDENCE

ARTICLES 233-235.

OPTIONAL DOCTRINE / CASE

- 37. Article 226 versus Article 227 in answer writing
- 38. High Court versus Supreme Court
- 39. Appointment reform matrix
- 40. Answer-writing evidence discipline

ADVANCED LIMIT

- Claim: High Court control protects district judicial independence.
- Named evidence: Articles 233-235.
- Mechanism: consultation for appointments and High Court control over posting/promotion/leave.
- Analysis: removes direct State-executive leverage.

COMPARATIVE NUANCE

- Qualification: recruitment and infrastructure remain shared responsibilities.
- Verdict: independence requires High Court control plus coordinated capacity.
- The operative mechanism matters because writ language expressly named writs/orders/directions superintendence.
- Its principal consequence is that suo motu ordinarily petition-based can be suo motu.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.